

# Ramesh vs The State Of Madhya Pradesh on 24 July, 2023

**Author: Vivek Rusia**

**Bench: Vivek Rusia, Anil Verma**

-1-

IN THE HIGH COURT OF MADHYA PRADESH  
AT I N D O R E

BEFORE  
HON'BLE SHRI JUSTICE VIVEK RUSIA  
&  
HON'BLE SHRI JUSTICE ANIL VERMA  
CRIMINAL APPEAL No. 667 of 2010

BETWEEN: -

RAMESH S/O RATAN BHIL, AGED ABOUT 41  
YEARS, OCCUPATION: LABOUR, R/O VILLAGE  
JHIKDI BAYDI, P.S., KUKSHI DISTRICT DHAR  
(MADHYA PRADESH)

(SHRI NITENDRA VAJPAYEE, LEARNED COUNSEL FOR THE APPELLANT.)

AND

THE STATE OF MADHYA PRADESH  
THROUGH P.S. KUKSHI, DISTRICT  
(MADHYA PRADESH)

(SHRI H.S. RATHORE, LEARNED GOVERNMENT ADVOCATE FOR THE  
RESPONDENT/STATE)

Reserved on : 20  
Delivered on : 24

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This appeal coming on for judgments this day, JUSTICE  
RUSIA passed the following:

Signature Not Verified  
Signed by: DIVYANSH  
SHUKLA  
Signing time: 25-07-2023

17:45:20

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## JUDGMENT

1. Appellant has filed the present appeal being aggrieved by judgment of conviction dated 12.11.2009 passed by Second Additional Sessions Judge, (Fast Track Court), Kukshi, District Dhar in Session Trial Case No.216/2009 whereby he has been convicted under Section 392 of IPC and sentenced to undergo 3 years R.I. with a fine of Rs.1,000/- and Section 302 of IPC and sentenced to undergo Life Imprisonment with fine of Rs.5,000/- with default stipulation. Both sentences shall run concurrently.

The case of the prosecution, in brief, is as follows: -

2. On 27.11.2008, Dhanubai aged about 75 years, i.e. mother of complainant Narayan went to the garden (Badi) near Mangalam Petrol Pump near his house at Sutaar to collect the flowers. At the same time, Doctor Rai also went there to collect flowers and he noticed that she is lying face down with no movement. He immediately went to the house of the complainant and informed that his mother is lying on the field and showing no response. Narayan and Dr. Rai went to the Badi and found her mother lying face down and a black coloured plastic rope was knotted on her neck. Doctor Rai examined and found her dead.

Narayan and Dr. Rai again came back to the house and informed about the incident to Mohan and other family members. They took Dhanubai to Kukshi Government Hospital, she was found bleeding from her mouth and ears, thereafter, they gave information at 11:25 at nearby police station Kukshi which was recorded as merge No.81/2008 followed by registration of FIR No.507/2008 under Section 302 of IPC Ex.-P/4 against an unknown person.

3. The police started the investigation and drew the safina form Ex.-P/6, Lash Panchnama Ex.-P/7 and spot map Ex.P/5. On the Spot, a gold ear top, silver screw, black button and electric tester were found and they were seized vide Ex.P/8. In the presence of witnesses, the dead body was sent for autopsy which was conducted by Dr. C.K. Jain (PW/5) who found the death homicidal due to strangulation. The injuries were found on the neck, both ears, left knee and bruises on the jaw confirming assault for the robbery. This appellant was arrested vide Ex.P/1 in the presence of a witness thereafter memorandum statement under Section 27 of the Evidence Act was also recovered due to which robbed gold jewellery was recovered from the open place as disclosed by the appellant. Jewellery was identified by the son Narayan vide Ex.P/12. Accordingly, the police made the appellant accused under Sections 302 and 392 of IPC and submitted a charge sheet. The appellant denied the charges and pleaded for trial.

4. The prosecution examined 9 witnesses and exhibited 13 documentary evidence. In defence appellant did not examine any witness. After appreciating the evidence that came on record vide judgment dated 12.11.2009, the appellant has been convicted and sentenced as stated above hence,

this appeal before this Court.

5. Since the benefit of suspension of the jail sentence was not granted, therefore, the appellant is in jail since the date of his arrest i.e. 28.02.2009.

6. Learned counsel for the appellant argued that it is a case of no evidence as no one saw this appellant causing murder and robbery of the deceased, therefore, on what basis the police arrested this appellant has not been disclosed by the Investigating Officer. The incident took place on 27.11.2008 and the appellant was arrested on 28.02.2009 in police station Kukshi. The looted articles were recovered from an open place, the deceased was found dead near the petrol pump in broad daylight, therefore, it cannot be believed that no one noticed the incident.

7. It is further submitted that even if the looted articles were found in the place disclosed by the appellant, at the most he is liable to be convicted under Section 392 of IPC only as no investigation was done and produced to establish the charge under Section 302 of IPC, therefore, the conviction under Section 302 of IPC is not liable to be sustained.

8. Learned Government Advocate for the respondent / State opposed the aforesaid submission by submitting that first the deceased Dhanubai was robbed and thereafter, murdered and articles were found from the possession of this appellant, therefore, the presumption is liable to be drawn that he murdered for robbery hence, no interference is liable to be called for criminal appeal dismissed.

We have heard learned counsel for the parties at length and perused the record.

9. PW/6 deposed that at 09:30, he went to Kukshi, Singhada Road to pluck the flower and found Dhanubai lying faced down, she used to come and collect the flowers. He did not find any movement in her body, therefore, he immediately called her son. The place where her body was found was 20 to 25 feet inside the main road and surrounded by bushes. He found a plastic rope tied in her neck and gold and silver jewellery were missing thereafter, he along with Narayan went to the police station and lodged the report. Mohanlal (PW/4) and Narayan (PW/3) have supported the aforesaid evidence, therefore, the findings recorded by the trial Court that the dead body of Dhanubai was found on 27.11.2008 at Sutaar to pluck the flowers is hereby affirmed. The dead body was sent for post-mortem, Dr. C.K. Jain (PW/5) conducted the autopsy and he found that the deceased was aged about 70 to 75 years of age. A rope 57 inches long and 1½ inches wide was knotted on her neck, the sign of strangulation and lacerated wounds on another part of her body. He has not been cross-examined on the aforesaid deposition. According to the doctor, she died due to strangulation of the neck hence, the findings are hereby affirmed.

10. It is correct that the FIR was lodged against the unknown person as no one saw this appellant causing the murder of Dhanubai. The appellant was arrested in the presence of Rajesh (PW/1) and Laxman (PW/2) and according to them, they went to the police station 5 to 6 months ago where present appellant Ramesh was arrested by the police. He was interrogated in their presence, and he recorded his statement about gold and silver articles. They have also admitted their signature on seizure memo. It is clear from the aforesaid evidence that when they reached the police station, the

accused was already present there. The prosecution examined S.L. Khardi (PW/7) who conducted the investigation and according to him on 28.02.2009 he arrested and interrogated this appellant in front of witnesses and drew the arrest memo Ex.P/1 present appellant in the presence of witnesses. The appellant disclosed the place where he hide gold and silver jewellery and thereafter the same were recovered. However, in the entire evidence, he did not disclose about any information given by the secret informant or how he had a suspicion about the appellant. The fact and circumstances about the arrest of the appellant are completely missing in the Charge-sheet as well as in the deposition of the Investigation Officer. However, the defence counsel did not ask any questions from him about the arrest of the appellant.

11. Since the gold articles recovered on disclosure of this appellant were put to identification by Narayan who identified the same in the presence of Naib Tehsildar (PW/9) and the appellant did not claim ownership of these articles. In his defence he has not stated anything and simply pleaded that he is innocent and falsely implicated. In the entire evidence, the prosecution has only proved recovery of gold articles from the present appellant. No investigation has been carried out and no material has been collected to establish that he strangled the neck of the deceased for the purpose of robbery. In our opinion if the robbery/loot is proved that is not sufficient to connect the appellant with murder on the basis of presumption. We find support from the case of Tulesh Kumar Sahu v/s State of Chattisgarh [(2022) LiveLaw SC 228] in which the Supreme Court of India held that the only evidence against the said accused is recovery of stolen property and although the circumstances may indicate that the theft and murder must have committed at the same time, it is not safe to draw the inference that person in possession of the stolen property was murdered. The relevant paragraph Nos.11 and 12 of the aforesaid judgment are as under:

11. The observations in Ashish Jain were relied upon in the decision in Sonu alias Sunil, and it was found that it would not be safe to uphold the conviction on the basis of material produced by the prosecution. This Court also relied upon the decisions in Sunder Lal alia Sundera vs. State of Madhya Pradesh, AIR 1954 SC 28 and Sanwant Khan vs. State of Rajasthan, AIR 1956 SC 54. The relevant discussion found in paragraphs 27, 28 and 33 of the judgment is:-

"27. The scope of this provision has been considered by this Court on various occasions. In Sunder Lal alias Sundera v. State of Madhya Pradesh, both the accused and deceased were seen together. After the alleged murder, the accused went with the article belonging to the deceased for pledging/selling it. In the circumstances, the Court took the view that the ornaments were established to be the ornaments worn by the deceased. No explanation was forthcoming how the accused came to be in possession on the very same day on which the alleged murder was committed. On this, the Court took the view that the conviction under Section 302 of the IPC, based on the circumstances, was correct.

28. On the other hand, in Sanwant Khan v. State of Rajasthan, one Mahant Ganesh Das, who was a wealthy person, used to live in a temple of Shri Gopalji along with another person.

Both of them were found dead. The house had been ransacked and boxes and almirah opened. It was not known at the time who committed the offence. Investigation resulted in arrest of the appellant, and on the same day, he produced a gold khanti from his bara, where it was found buried in the ground. Another accused produced a silver plate. The Court found that there was no direct evidence. There were certain circumstances which were rejected by the Sessions Judge and the solitary circumstance was the recovery of the two articles. In these circumstances, the Court held, inter alia, as follows: "Be that as it may, in the absence of any direct or circumstantial evidence whatsoever, from the solitary circumstance of the unexplained recovery of the two articles from the houses of the two appellants the only inference that can be raised in view of illustration A to S.114 of the Evidence Act is that they are either receivers of stolen property or were the persons who committed the theft, but it does not necessarily indicate that the theft and the murders took place at one and the same time.

\*\* \*\* \* Here, there is no evidence, direct or circumstantial, that the robbery and murder formed parts of one transaction. It is not even known at what time of the night these events took place. It was only late next morning that it was discovered that the Mahant and Ganpatia had been murdered and looted. In our Judgment, Beaumont, C.J., and Sen J. in - Bhikha Gobar v. Emperor, AIR 1943 Bom. 458 (B) rightly held that the mere fact that an accused produced shortly after the murder ornaments which were on the murdered person is not enough to justify the inference that the accused must have committed the murder.

\*\* \*\* \* In our judgment no hard and fast rule can be laid down as to what inference should be drawn from a certain circumstance. Where, however, the only evidence against an accused person is the recovery of stolen property and although the circumstances may indicate that the theft and the murder must have been committed at the same time, it is not safe to draw the inference that the person in possession of the stolen property was the murdered. Suspicion cannot take the place of proof. " 33. In the case of recovery of an article from an accused person when he stands accused of committing offences other than theft also, (in this instance murder), what are the tests:

i. The first thing to be established is that the theft and murder forms part of one transaction. The circumstances may indicate 7 that the theft and murder must have been committed at the same time. But it is not safe to draw the inference that the person in possession of the stolen property was the murderer [Sanwant Khan (supra)];

ii. The nature of the stolen article;

iii. The manner of its acquisition by the owner; iv. The nature of evidence about its identification; v. The manner in which it was dealt with by the accused; vi. The place

and the circumstances of its recovery; vii. The length of the intervening period; viii. Ability or otherwise of the accused to explain its possession [See Baiju v. State of Madhya Pradesh, (1978) 1 SCC 588]."

12. The only material which may possibly be taken against the appellant is, thus extremely weak. There is no other material on record which could even remotely be taken against the appellant. On the strength of the law declared by this Court, the appellant is, therefore, entitled to benefit of doubt.

12. In the present case also except recovery of the gold and silver jewellery of the deceased nothing has been established by the prosecution in respect of a murder hence, the appeal is liable to be partly allowed. The conviction and sentence under Section 302 of IPC are set aside but the conviction under Section 392 of the IPC is hereby upheld which he has undergone . The fine amount is maintained as imposed by the trial Court. The appellant be set free after depositing the fine amount if he is not required to keep in jail in any other case.

[13] Record of the trial Court be sent back along with a copy of this judgment.

Certified copy as per Rules.

(VIVEK RUSIA)  
JUDGE  
Divyansh